SW Hospitality Group (Boca), LLC.
d/b/a SW Grill
NEW HIRE FORM

DATE OF HIRE: _____ POSITION: _____

SSN: _____ PAY RATE: _____

LAST NAME: _____

MIDDLE INITIAL: _____

FIRST NAME: _____

ADDRESS: _____

CITY: _____

STATE: _____

ZIP: _____

PHONE NUMBER: _____

EMAIL: _____

Emergency Contact name and phone number: _____

(FOR OFFICE USE ONLY. TO BE FILLED OUT BY HIRING MANAGER.)

NAME ON SOCIAL SECURITY CARD AND ID MATCH ____YES

IS IDENTIFICATION VALID ____YES

WERE COPIES OF ID AND SOCIAL MADE ____YES

ARBITRATION AGREEMENT SIGNED ____YES

ALCOHOL AWARNESS AND FOOD HANDLERS ____YES

_____

MANAGER COMPLETING THIS FORM

ALCOHOL AWARENESS

SW Hospitality Group (Boca), LLC. has this Alcohol Policy to further its strong commitment to prohibit the sale, service, or consumption of alcoholic beverages by or to minors and intoxicated persons. It is the policy of SW Hospitality Group (BOCA), LLC. that all of its employees will attend an ABT approved Responsible Vendor Training program. SW Hospitality Group (Boca), LLC. requires that each of its employees provide proof that they attended and completed such a course in Responsible Vendor Training. All employees are expected to follow at all times the rules, regulations, guidelines, instructions, materials, and policies provided and discussed at the ABT approved Responsible Vendor Training program, as well as all federal, state and local government regulations and laws.

As part of a condition of my employment with SW Hospitality Group (Boca), LLC. I, _____ understand and agree to the following policy and procedures about the sale and service of alcoholic beverages.

1. I will not sell beer, wine, or liquor to any person under 21 years of age.
2. If any customer does not clearly appear to be at least 25 years old, I will ask for, look at and read either: A valid Drivers or Chauffeurs License containing a picture issued by any state; a valid identification card containing a picture issued by any state for the purpose of proof of age; a valid passport; or a valid Alien Registration Card. I will not accept for the primary source to verify age a Social Security Card; Student ID Card, Voter Registration Card, Work ID Card, Birth Certificate or Marriage License.
3. Management may refuse to sell beer, wine or liquor to any person unable to produce adequate current valid identification of age.
4. I will not knowingly sell or serve beer, wine or liquor to any adult for use by any underage person, including parents, spouses or relatives.
5. I will not knowingly sell or serve beer, wine or liquor to any person who is obviously intoxicated or acting disorderly.
6. I will not sell or serve beer, wine or liquor to anyone during restricted days or hours.
7. I will not use or allow the sale, delivery, storage, or use of any unlawful drugs in my work area. If I witness or suspect any such unlawful activity, I will immediately notify my supervisor or manager.
8. I will not allow any illegal activity, such as gambling or prostitution in my work area. If I witness or suspect any such activity, I will immediately notify my supervisor or manager.

I understand that my activities will be monitored by my employer as well as local and state investigators to ensure compliance with local and state laws, and I understand that it is company policy to cooperate with local enforcement officers and state investigators on criminal investigations.

Failure to follow this Alcohol Policy may result in disciplinary action, up to and including, termination of employment.

By signing this form, I hereby acknowledge that I have read and fully understand this Alcohol Policy.

Employees Name (Printed): _____

Employees Signature: _____

Date: _____

Initial _____

DRUG AND ALCOHOL TESTING POLICY

It is our goal to provide a drug free environment for all employees. Drug use will not be tolerated. SW Hospitality Group (Boca), LLC. participates in a random drug-testing program.
All employees will be subject to a random selection for drug testing.

Testing due to reasonable cause or suspicion:
An employee may be required to submit to a drug test if the individual exhibits specific, contemporaneous signs of being under the influence of illegal drugs or controlled substances exhibited through the persons appearance, behavior, speech, or body odors.

Consequences for violation of drug policy:
1. Violation of the policy may result in severe disciplinary action – including termination – at the company's discretion within the terms of the policy.

2. Employees testing positive for illegal or controlled substance abuse with no legal basis for use and who decline or refuse evaluation and treatment will be terminated and ineligible for rehire.

3. Appropriate company personnel will determine whether and employee testing positive who seeks evaluation and treatment should be reassigned or terminated.

Assistance in overcoming drug and alcohol abuse:
Employees with illegal drug or controlled substance abuse can request from the company a referral to a drug program. This is private and confidential.

I, the undersigned, understand that SW Hospitality Group (Boca), LLC. participates in a random drug testing and I have read and understand the policy.

Employees Name (Printed): _____

Employees Signature: _____

Date: _____

CASH HANDLING POLICY

I agree to be personally responsible for both the cash that is given to me at the beginning of my shift and for the cash register assigned to me during my shift. I understand that the manager and myself will count the amount of cash in my drawer at the end of my shift. The total of that cash will be compared to the cash register's summary tape.

I understand that any shortages must be paid or will be deducted from my paycheck. I authorize, GC Ventures FL, LLC., my employer to do so.

Employees Name (Printed): _____

Employees Signature: _____

Date: _____

Initial _____

EMPLOYEE ARBITRATION AGREEMENT
READ THIS DOCUMENT THOROUGHLY-THIS AFFECTS YOUR LEGAL RIGHTS

This Arbitration Agreement (hereinafter "Agreement") is made this _____ day of _____, 202___, by and between SW Hospitality Group (Boca), LLC d.b.a. SW Grill (hereinafter "restaurant"), and _____ (hereinafter "Employee").

WHEREAS, Restaurant requires all Employees to arbitrate "covered claims," as said term is defined in this Agreement, on an individual basis;

WHEREAS, Employee agrees to arbitrate all "covered claims" on an individual basis as a condition of employment at the Restaurant;

WHEREAS, Restaurant agrees to allow Employee to begin employment for this Agreement; and

NOW THEREFORE, in consideration of the mutual covenants and promises herein contained and other good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties to this Agreement agree as follows:

1. All terms and conditions referenced in the previous paragraphs, including but not limited to the "WHEREAS" and "THEREFORE" provisions, are incorporated herein and made a part of this Agreement.

2. The parties to this Agreement agree that all "covered claims" that Employee may have against Restaurant (or its owners, directors, officers, managers, employees, or agents) or that Restaurant may have against Employee shall be submitted exclusively to and determined exclusively by binding arbitration in West Palm Beach, FL under the Federal Arbitration Act, 9 U.S.C. § 1 *ET SEQ.,* regardless of the substantive law applied in the arbitration.

3. Employee agrees that she/he will pursue to binding arbitration all "covered claims" as an individual and will not lead, join, or serve as a member of a class or group of persons bringing such "covered claims." Restaurant agrees that it will pursue binding arbitration to administer all "covered claims" as a single entity and will not lead, join, or serve as a member of a class or group of entities bringing such "covered claims."

4. The parties to this Agreement agree that "covered claims" include, but are not limited to, all grievances, disputes, claims, or causes of action in any federal, state, and/or local court or agency under any applicable federal, state, and/or local law that may arise as a result of the services Employee provides at Restaurant, including but not limited to claims alleging discrimination, harassment, retaliation, or breach of any other agreement between the Restaurant and the Employee, and/or related to Employee's compensation for the services Employee performs, and specifically including any claim or cause of action alleging Employee is an employee of Restaurant, claims of employment discrimination or harassment if protected by applicable federal, state or local law, and retaliation for raising discrimination or harassment claims, failure to pay wages, bonuses or other compensation, tortious acts, wrongful, retaliatory and/or constructive discharge, breach of an express or implied contract, promissory estoppel, unjust enrichment, and violations of any other common law, federal, state, or local statute, ordinance, regulation or public policy, including, but not limited to Title VII of the Civil Rights Act of 1964, the Civil Rights Acts of 1866 and 1991, the Age Discrimination in Employment Act of 1967, the Older Workers Benefit Protection Act of 1990, the Rehabilitation Act of 1973, the Americans with Disabilities Act of 1990, the Family and Medical Leave Act of 1993, the Fair Labor Standards Act of 1938, the Equal Pay Act of 1963, Section 1981 of the Civil Rights Act, and the Worker Adjustment and Retraining Notification Act.

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5. EXCLUDED CLAIMS: This Agreement does not cover, and the following claims are not subject to arbitration under this Agreement: (a) any criminal complaint or proceeding, (b) any claims covered by state unemployment insurance, state or federal disability insurance, and/or state workers' compensation benefit laws, except that claims for retaliation pursuant to these laws shall be subject to arbitration under this Agreement, (c) any claim under the National Labor Relations Act, and (d) claims for benefits under a plan that is governed by Employee Retirement Income Security Act of 1974 ("ERISA"). Further, this Agreement also does not cover any action seeking only declaratory and/or emergency, temporary or preliminary injunctive relief (including a temporary restraining order) in a court of competent jurisdiction in accordance with applicable law, so long as that action is brought on an individual basis and not on a consolidated basis or as part of a collective or class action, regardless of whether the covered claims arose or accrued prior or subsequent to Employee entering into this Agreement.

6. The parties to this Agreement understand and fully agree that by entering into this Agreement to arbitrate they are giving up their right to have a trial by jury, and are giving up their normal rights of appeal following the rendering of a decision except as law provides for judicial review of arbitration proceedings.

7. The parties agree that **ANY DISPUTES THAT MAY HAVE ARISEN AT ANY TIME DURING THE RELATIONSHIP BETWEEN THE PARTIES**, even those preceding this Agreement, will be governed and settled by an impartial independent arbitrator appointed by the American Arbitration Association, South Florida branch and the determination of the arbitrator shall be final and binding (except to the extent there exist grounds for vacation of an award under applicable arbitration statutes). The parties may agree to utilize another qualified arbitration service. The arbitration provision contained herein shall be self-executing and shall remain in full force after expiration or termination of this Agreement. In the event any party fails to appear at any properly noticed arbitration proceeding, an award may be entered against such party by default or otherwise, notwithstanding such failure to appear. The arbitrator shall give effect insofar as possible to the desire of the parties hereto that the dispute or controversy be resolved in accordance with good commercial practice and the provisions of this Agreement. To the fullest extent permitted by law, the arbitrator shall apply the commercial arbitration rules of the American Arbitration Association and Title 9 of the U.S. Code.

8. All parties shall have the right to be represented by legal counsel at arbitration. The arbitrator shall permit reasonable discovery. The parties shall have the right to subpoena witnesses in order to compel their attendance at hearing and to cross-examine witnesses, and the arbitrator's decision shall be in writing and shall contain findings of fact and conclusions of law. The arbitrator's decision shall be final, subject only to review pursuant to the FAA. The arbitrator shall have exclusive authority to resolve any and all disputes over the validity of any part of this agreement, and any award by the arbitrator may be entered as a judgment in any court having jurisdiction.

9. Employee understands and acknowledges that by signing this agreement he/she/he specifically waives any right to participate in any class action or collective action and if at any time Employee is deemed a member of any class created by any court in any proceeding, he/she/he will "opt out" of such class at the first opportunity, and should any third party pursue any claims on his/her behalf Employee shall waive his/her rights to any requested monetary or other recovery.

10. The parties to this Agreement understand and fully agree that they are required to bring all covered claims in one arbitration proceeding. Any covered claim not brought as one arbitration proceeding shall be waived and precluded. The arbitrator shall have the power to hear as many covered claims the Restaurant or Employee may have

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against each other consistent with the terms of this Agreement.

11. The parties to this Agreement agree that the arbitrator has no authority to and shall not consolidate claims of different Employees and/or employees into one proceeding, nor shall the arbitrator have the power to hear an arbitration as a class or collective action (a class or collective action involves an arbitration or lawsuit where representative members of a group who claim to share a common interest seek class or collective relief), and the parties to this Agreement shall not be allowed to submit covered claims to arbitration as a representative of or participant to a class or collective action or a claim seeking class or collective relief. If this class or collective action waiver is deemed to be unenforceable, then Restaurant and Employee agree that this Agreement is otherwise silent as to any party's ability to bring a class or collective action in arbitration.

12. The parties to this Agreement agree that nothing in this Agreement prohibits Employee from filing at any time a charge or complaint with a government agency. However, upon receipt of a right to sue letter or similar administrative determination, Employee agrees that their claims become subject to arbitration pursuant to this Agreement. Importantly, nothing in this Agreement prevents Employee from engaging in protective concerted activity and/or discussing any of the terms and conditions of her services with other Employees.

13. The parties to this Agreement agree that they cannot file a civil lawsuit in court against the other party relating to the covered claims. If a party files a lawsuit in court to resolve covered claims subject to arbitration, both agree that the court shall dismiss the lawsuit and require the claim to be resolved through arbitration as required by this Agreement.

14. If a party to this Agreement files a lawsuit in court involving claims that are, and other claims that are not subject to arbitration, pursuant to this Agreement such party shall request the court to stay litigation of the non-arbitrable claims and require that arbitration take place with respect to those claims subject to arbitration. The arbitrator's decision on the arbitrable claims, including any determinations as to disputed factual or legal issues, shall be entitled to full force and effect in any later court lawsuit on any non-arbitrable claims.

15. The parties to this Agreement agree that arbitration must be initiated in accordance with the time limits contained in the applicable Florida law's statute of limitations.

16. The parties to this Agreement agree that the arbitration hearing shall be held at a location in within twenty-five (25) miles of the Restaurant's physical location, unless the parties agree otherwise.

17. The parties to this Agreement agree that "Costs of Arbitration" include filing or administrative fees charged by the arbitration service, or hourly fees charged by the arbitrator. "Incidental costs" include such items as photocopying or the costs of producing witnesses or proof. **Each party shall bear its own costs in any arbitration**. The arbitrator may require the Restaurant to pay "Costs of Arbitration" or any "Incidental Costs" only if based on applicable law. This Agreement does not infringe on either party's right to consult with an attorney at any time and in such a situation the consulting party shall be responsible for all attorney fees and costs unless the arbitrator orders otherwise pursuant to applicable law.

18. Upon a finding that a party has sustained its burden of persuasion in

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establishing a violation of applicable law, the parties to this Agreement agree that the arbitrator shall have the same power and authority as would a court to grant any relief, including costs and attorney fees, that a court could grant, in conformance with applicable principles of common, decisional, and statutory law in the relevant jurisdiction.

19. The parties to this Agreement agree that they may settle their dispute at any time without involvement of the arbitrator.

20. If any term or provision or portion of this Agreement is declared void or unenforceable, it shall be severed and the remaining terms, provisions, or portions of this Agreement shall be enforceable.

21. This Agreement may be modified, in whole or in part, or terminated by Restaurant only after Restaurant provides at least 30 days written notice of such modification or termination to Employee, and only with respect to claims submitted under the Agreement which are received after the effective date of such modification or termination. The Agreement in effect at the time a covered claim is received by Restaurant shall govern the process by which the claim is determined.

22. The mutual obligations set forth in this agreement shall constitute a contract between restaurant and Employee but shall not change your at-will relationship or any term of any other contract or agreement that may exist between restaurant and Employee. This agreement shall constitute the entire agreement between restaurant and Employee for the resolution of covered claims.

23. Employee acknowledges that she/he received this Agreement, read this Agreement, understands this Agreement, and agrees to the terms of this Agreement.

24. This Agreement supersedes and replaces any prior arbitration agreement and/or provision in any other agreement or document between Employee and Restaurant.

EXECUTED AS FOLLOWS:

_____	_____
Employee - Signature Date	Manager - Signature Date
_____	_____
Employee - Print Name	Manager - Print Name

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Documentation and Incident Reporting

Please remember that reasonable steps should be taken to ensure all incidents are documented. Documentation is critical in protecting yourself and the Restaurant.

The writing of concise and accurate Incident Reports is an important part of your job. Names, addresses, dates, times and locations are all important. Note all aspects of the condition of the area and guests on incident reports.
Reports are to be factual; not statements of opinions or assessments of fault.

Whenever possible, an Incident Report should be completed for each of the following: medical transport, first aid treatment or injury, law enforcement call. Everyone involved in an incident is to make a written statement of the facts.
All reports must be delivered to the manager on duty at the end of the shift.

Always prepare reports with the understanding that the person reading is not familiar with the building, our procedures or the people involved. You should also make the assumption that the person who is using the report does not have access to the people who were there, to ask questions or seek out additional information and can only rely on the information in the report itself.

When completing Incident Reports, you will not discuss or decide fault or liability. Be complete, accurate, specific, factually clear and well organized.

Evaluate the report and clarify as needed. Is your name on it? Is it legible? Is all witness information included? Is it objective and factual?

Initial _____

EMPLOYEE PHOTOGRAPHY/VIDEO RELEASE

In consideration of my employment with GC Ventures FL, LLC d.b.a. SW Grill, and as part of the services being furnished by me to said Company, I hereby give my consent to the photographing or video recording of myself.

The Company is hereby authorized to use or cause to be used said still photographs or video recordings for social media postings, advertising, publicity, or other business purposes. Said photographs and/or recordings may be used singularly or in conjunction with other photographs and/or recordings.

I understand and agree that any such materials will become the exclusive property of the Company and will not be returned. I hereby give the Company my consent to retain, reproduce, exhibit, show and use the material, as authorized above, in the future, irrespective of the use.

I hereby irrevocably authorize the Company to edit, alter, copy, exhibit, publish or distribute my likeness for purposes of publicizing the Company or for any other lawful purpose. In addition, I hereby waive the right to inspect or approve the finished product, including written or electronic copy, wherein my likeness appears. Additionally, I hereby waive and relinquish all rights, title and interest therein, including, without limitation, any property rights or any right to royalties or other compensation relating to the use of my likeness in photograph or videotape form. I further understand that no special compensation will be provided to me for use of my image and that I may not be informed in advance of the specific use of my image.

I hereby release, hold harmless and forever discharge the Company, any of its associated or affiliated companies, their directors, officers, agents, employees or customers from any and all claims, demands, and causes of action, including without limitation, claims for libel, invasion of privacy, or personal injury which I have or may have relating to the matters covered by this authorization.

I have read this release before signing below, and I fully understand its content.

I hereby freely enter into this Agreement:

Employees Name (Printed): _____

Employees Signature: _____

Date: _____

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HANDBOOK ACKNOWLEDGEMENT AND RECEIPT

I have read and understand all parts of the Employee Handbook.

The employee handbook describes important information about SW Grill, and I understand that I should consult the Management Team or Administration Team regarding any questions not answered in the handbook. I have entered into my employment relationship with SW Grill voluntarily and acknowledge that there is no specified length of employment. Accordingly, either I or SW Grill can terminate the relationship at will, with or without cause, at any time, so long as there is not violation of applicable federal or state law.

I acknowledge the orientation presentation and understand the Employee Handbook outlines my benefits and obligation as an employee. I understand the Standards of Conduct and the rules, policies and procedures which I am expected to follow. I agree and will abide by all of them.

I understand and agree that nothing in the Employee Handbook creates, or is intended to create, a promise or representation of continued employment and that employment at SW Grill is employment at-will, which may be terminated at the will of either SW Grill or myself. Furthermore, I acknowledge that this handbook is not a contract of employment. I understand and agree that employment and compensation may be terminated with or without cause and with or without notice at any time by SW Grill or myself. I also understand that the company reserves the right to change this handbook at any time.

I have received the handbook, and I understand that it is my responsibility to read and comply with the policies contained in this handbook and any revisions made to it.

Employees Name (Printed): _____

Employees Signature: _____

Date: _____

Initial _____